

SANHITA360

CHAPTER V

OF ABETMENT

IPC Sections 107-120 and BNS Sections 45-60

Instigation, conspiracy, intentional aid and consequential liability

ACADEMIC NOTE

This material explains abetment under the Indian Penal Code, 1860 and the Bharatiya Nyaya Sanhita, 2023. It is educational material, not legal advice.

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Chapter Overview

Abetment fixes liability on a person who instigates, joins an abetment conspiracy, or intentionally aids the doing of a thing. This chapter studies the definition of abetment and abettor, cross-border abetment, punishment when the act is or is not committed, liability for different acts or effects, cumulative punishment, presence of the abettor, group abetment, and concealment of criminal designs.

IPC Sections 107-120 are substantially reorganised as BNS Sections 45-60. BNS Section 48 inserts a new reciprocal cross-border rule for abetment outside India of an offence in India; this shifts the later numerical mapping.

Learning Objectives

- Identify instigation, abetment by conspiracy and intentional aid.
- Distinguish abetment from criminal conspiracy and mere knowledge.
- Explain why completion of the principal offence is not always necessary.
- Apply liability for a different act or different effect.
- Calculate punishment where the act abetted is or is not committed.
- Explain cross-border abetment under the IPC and BNS.
- Analyse concealment of designs and public-servant liability.

Master IPC-to-BNS Map

IPC provision	BNS provision	Transition
Sections 107-108	Sections 45-46	Definition of abetment and abettor.
Section 108A	Section 47	Abetment in India of an offence outside India.
No direct IPC counterpart	Section 48	New reciprocal rule: abetment outside India for an offence in India.
Sections 109-114	Sections 49-54	Consequences, different acts or effects, cumulative liability and presence.
Sections 115-120	Sections 55-60	Uncommitted offences, group abetment and concealment of designs.

Section-by-Section Statutory Study

Every entry preserves the attached IPC section and identifies the corresponding BNS provision.

Section 107 IPC: Abetment of a thing

Corresponding provision: Section 45 BNS.

A person abets the doing of a thing, who— First.—Instigates any person to do that thing; or Secondly.—Engages with one or more other person or persons in any conspiracy for the doing of that thing, if an act or illegal omission takes place in pursuance of that conspiracy, and in order to the doing of that thing; or Thirdly.—Intentionally aids, by any act or illegal omission, the doing of that thing.

Explanation 1.—A person who, by wilful misrepresentation, or by wilful concealment of a material fact which he is bound to disclose, voluntarily causes or procures, or attempts to cause or procure, a thing to be done, is said to instigate the doing of that thing.

Illustration

A, a public officer, is authorised by a warrant from a Court of Justice to apprehend Z, B, knowing that fact and also that C is not Z, wilfully represents to A that C is Z, and thereby intentionally causes A to apprehend C. Here B abets by instigation the apprehension of C.

Explanation 2.—Whoever, either prior to or at the time of the commission of an act, does anything in order to facilitate the commission of that act, and thereby facilitates the commission thereof, is said to aid the doing of that act

Section 108 IPC: Abettor

Corresponding provision: Section 46 BNS.

A person abets an offence, who abets either the commission of an offence, or the commission of an act which would be an offence, if committed by a person capable by law of committing an offence with the same intention or knowledge as that of the abettor.

Explanation 1.—The abetment of the illegal omission of an act may amount to an offence although the abettor may not himself be bound to do that act.

Explanation 2.—To constitute the offence of abetment it is not necessary that the act abetted should be committed, or that the effect requisite to constitute the offence should be caused.

Illustrations

(a) A instigates B to murder C. B refuses to do so. A is guilty of abetting B to commit murder. (b) A instigates B to murder D. B in pursuance of the instigation stabs D. D recovers from the wound. A is guilty of instigating B to commit murder.

Explanation 3.—It is not necessary that the person abetted should be capable by law of committing an offence, or that he should have the same guilty intention or knowledge as that of the abettor, or any guilty intention or knowledge.

Illustrations

(a) A, with a guilty intention, abets a child or a lunatic to commit an act which would be an offence, if committed by a person capable by law of committing an offence, and having the same intention as A. Here A, whether the act be committed or not, is guilty of abetting an offence. (b) A, with the intention of murdering Z, instigates B, a child under seven years of age, to do an act which causes Z's death. B, in consequence of the abetment, does the act in the absence of A and thereby causes Z's death. Here, though B was not capable by law of committing an offence, A is liable to be punished in the same manner as if B had been capable by law of committing an offence, and had committed murder, and he is therefore subject to the punishment of death. (c) A instigates B to set fire to a dwelling-house. B, in consequence of the unsoundness of his mind, being incapable of knowing the nature of the act, or that he is doing what is wrong or contrary to law, sets fire to the house in consequence of A's instigation. B has committed no offence, but A is guilty of abetting the offence of setting fire to a dwelling-house, and is liable to the punishment provided for that offence. (d) A, intending to cause a theft to be committed, instigates B to take property belonging to Z out of Z's possession. A induces B to believe that the property belongs to A. B takes the property out of Z's possession, in good faith, believing it to be A's property. B, acting under this misconception, does not take dishonestly, and therefore does not commit theft. But A is guilty of abetting theft, and is liable to the same punishment as if B had committed theft.

Explanation 4.—The abetment of an offence being an offence, the abetment of such an abetment is also an offence.

Illustration

A instigates B to instigate C to murder Z. B accordingly instigates C to murder Z, and C commits that offence in consequence of B's instigation. B is liable to be punished for his offence with the punishment for murder; and, as A instigated B to commit the offence, A is also liable to the same punishment.

Explanation 5.—It is not necessary to the commission of the offence of abetment by conspiracy that the abettor should concert the offence with the person who commits it. It is sufficient if he engages in the conspiracy in pursuance of which the offence is committed.

Illustration

A concert with B a plan for poisoning Z. It is agreed that A shall administer the poison. B then explains the plan to C mentioning that a third person is to administer the poison, but without mentioning A's name. C agrees to procure the poison, and procures and delivers it to B for the purpose of its being used in the manner explained. A administers the poison; Z dies in consequence. Here, though A and C have not conspired together, yet C has been engaged in the conspiracy in pursuance of which Z has been murdered. C has therefore committed the offence defined in this section and is liable to the punishment for murder

Section 108A IPC: Abetment in India of offences outside India

Corresponding provision: Section 47 BNS.

A person abets an offence within the meaning of this Code who, in 2[India], abets the commission of any act without and beyond 2[India] which would constitute an offence if committed in 2[India].

Illustration

A, in 2[India], instigates B, a foreigner in Goa, to commit a murder in Goa, A is guilty of abetting murder.]

BNS addition: Section 48 also makes a person outside India liable for abetting an act in India that would constitute an offence if committed in India.

Section 109 IPC: Punishment of abetment if the act abetted is committed in consequence and where no express provision is made for its punishment

Corresponding provision: Section 49 BNS.

Whoever abets any offence shall, if the act abetted is committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with the punishment provided for the offence. Explanation.—An act or offence is said to be committed in consequence of abetment, when it is committed in consequence of the instigation, or in pursuance of the conspiracy, or with the aid which constitutes the abetment.

Illustrations

(a) A offers a bribe to B, a public servant, as a reward for showing A some favour in the exercise of B's official functions. B accepts the bribe. A has abetted the offence defined in section 161. (b) A instigates B to give false evidence. B, in consequence of the instigation, commits that offence. A is guilty of abetting that offence, and is liable to the same punishment as B. (c) A and B conspire to poison Z. A, in pursuance of the conspiracy, procures the poison and delivers it to B in order that he may administer it to Z. B, in pursuance of the conspiracy, administers the poison to Z in A's absence and thereby causes Z's death. Here B is guilty of murder. A is guilty of abetting that offence by conspiracy, and is liable to the punishment for murder

Section 110 IPC: Punishment of abetment if person abetted does act with different intention from that of abettor

Corresponding provision: Section 50 BNS.

Whoever abets the commission of an offence shall, if the person abetted does the act with a different intention or knowledge from that of the abettor, be punished with the punishment provided for the offence which would have been committed if the act had been done with the intention or knowledge of the abettor and with no other

Section 111 IPC: Liability of abettor when one act abetted and different act done

Corresponding provision: Section 51 BNS.

When an Act is abetted and a different act is done, the abettor is liable for the act done, in the same manner and to the same extent as if he had directly abetted it: Provided the act done was a probable consequence of the abetment, and was committed under the influence of the instigation, or with the aid or in pursuance of the conspiracy which constituted the abetment.

Illustrations

(a) A instigates a child to put poison into the food of Z, and gives him poison for that purpose. The child, in consequence of the instigation, by mistake puts the poison into the food of Y, which is by the side of that of Z. Here, if the child was acting under the influence of A's instigation, and the act done was under the circumstances a probable consequence of the abetment, A is liable in the same manner and to the same extent as if he had instigated the child to put the poison into the food of Y. (b) A instigates B to burn Z's house B sets fire to the house and at the same time commits theft of property there. A, though guilty of abetting the burning of the house, is not guilty of abetting the theft; for the theft was a distinct act, and not a probable consequence of the burning. (c) A instigates B and C to break into an inhabited house at midnight for the purpose of robbery, and provides them with arms for that purpose. B and C break into the house, and being resisted by Z, one of the inmates, murder Z. Here, if that murder was the probable consequence of the abetment, A is liable to the punishment provided for murder

Section 112 IPC: Abettor when liable to cumulative punishment for act abetted and for act done

Corresponding provision: Section 52 BNS.

If the act for which the abettor is liable under the last preceding section is committed in addition to the act abetted, and constitute a distinct offence, the abettor is liable to punishment for each of the offences.

Illustration

A instigates B to resist by force a distress made by a public servant. B, in consequence, resists that distress. In offering the resistance, B voluntarily causes grievous hurt to the officer executing the distress. As B has committed both the offence of resisting the distress, and the offence of voluntarily causing grievous hurt, B is liable to punishment for both these offences; and, if A knew that B was likely voluntarily to cause grievous hurt in resisting the distress A will also be liable to punishment for each of the offences

Section 113 IPC: Liability of abettor for an effect caused by the act abetted different from that intended by the abettor

Corresponding provision: Section 53 BNS.

When an act is abetted with the intention on the part of the abettor of causing a particular effect, and an act for which the abettor is liable in consequence of the abetment, causes a different effect from that intended by the abettor, the abettor is liable for the effect caused, in the same manner and to the same extent as if he had abetted the act with the intention of causing that effect, provided he knew that the act abetted was likely to cause that effect.

Illustration

A instigates B to cause grievous hurt to Z. B, in consequence of the instigation, causes grievous hurt to Z. Z dies in consequence. Here, if A knew that the grievous hurt abetted was likely to cause death, A is liable to be punished with the punishment provided for murder

Section 114 IPC: Abettor present when offence is committed

Corresponding provision: Section 54 BNS.

Whenever any person, who is absent would be liable to be punished as an abettor, is present when the act or offence for which he would be punishable in consequence of the abetment is committed, he shall be deemed to have committed such act or offence

Section 115 IPC: Abetment of offence punishable with death or imprisonment for life

Corresponding provision: Section 55 BNS.

if offence not committed.—Whoever abets the commission of an offence punishable with death or 1[imprisonment for life], shall, if that offence be not committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine; if act causing harm be done in consequence.—and if any act for which the abettor is liable in consequence of the abetment, and which causes hurt to any person, is done, the abettor shall be liable to imprisonment of either description for a term which may extend to fourteen years, and shall also be liable to fine.

Illustration

A instigates B to murder Z. The offence is not committed. If B had murdered Z, he would have been subject to the punishment of death or 1[imprisonment for life]. Therefore A is liable to imprisonment for a term which may extend to seven years and also to a fine; and if any hurt be done to Z in consequence of the abetment, he will be liable to imprisonment for a term which may extend to fourteen years, and to fine

Section 116 IPC: Abetment of offence punishable with imprisonment

Corresponding provision: Section 56 BNS.

if offence be not committed.—Whoever abets an offence punishable with imprisonment shall, if that offence be not committed in consequence of the abetment, and no express provision is made by this Code for the punishment of such abetment, be punished with imprisonment of any description provided for that offence for a term which may extend to one-fourth part of the longest term provided for that offence; or with such fine as is provided for that offence, or with both; if abettor or person abetted be a public servant whose duty it is to prevent offence.—and if the abettor or the person abetted is a public servant, whose duty it is to prevent the commission of such offence, the abettor shall be punished with imprisonment of any description provided for that offence, for a term which may extend to one-half of the longest term provided for that offence, or with such fine as is provided for the offence, or with both.

Illustrations

(a) A offers a bribe to B, a public servant, as a reward for showing. A somefavour in the exercise of B's official functions. B refuses to accept the bribe. A is punishable under this section. (b) A instigates B to give false evidence. Here, if B does not give false evidence, A has nevertheless committed the offence defined in this section, and is punishable accordingly. (c) A, a police-officer, whose duty it is to prevent robbery, abets the commission of robbery. Here, though the robbery be not committed, A is liable to one-half of the longest term of imprisonment provided for that offence, and also to fine. (d) B abets the commission of a robbery by A, a police-officer, whose duty it is to prevent that offence. Here, though the robbery be not committed, B is liable to one-half of the longest term of imprisonment provided for the offence of robbery, and also to fine

Section 117 IPC: Abetting commission of offence by the public or by more than ten persons

Corresponding provision: Section 57 BNS.

Whoever abets the commission of an offence by the public generally or by any number or class of persons exceeding ten, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

Illustration

A affixes in a public place a placard instigating a sect consisting of more than ten members to meet at a certain time and place, for the purpose of attacking the members of an adverse sect, while engaged in a procession. A has committed the offence defined in this section

Material change: BNS Section 57 increases the maximum imprisonment from three years under IPC Section 117 to seven years and fine.

Section 118 IPC: Concealing design to commit offence punishable with death or imprisonment for life

Corresponding provision: Section 58 BNS.

Whoever intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence punishable with death or [imprisonment for life], 1 [voluntarily conceals by any act or illegal omission, or by the use of encryption or any other information hiding tool, the existence of a design] to commit such offence or makes any representation which he knows to be false respecting such design, if offence be committed; if offence be not committed.—shall, if that offence be committed, be punished with imprisonment of either description for a term which may extend to seven years, or, if the offence be not committed, with imprisonment of either description, for a term which may extend to three years; and in either case shall also be liable to fine.

Illustration

A, knowing that dacoity is about to be committed at B, falsely informs the Magistrate that a dacoity is about to be committed at C, a place in an opposite direction, and thereby misleads the Magistrate with intent to facilitate the commission of the offence. The dacoity is committed at B in pursuance of the design. A is punishable under this section

Section 119 IPC: Public servant concealing design to commit offence which it is his duty to prevent

Corresponding provision: Section 59 BNS.

Whoever, being a public servant intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence which it is his duty as such public servant to prevent, 1 [voluntarily conceals, by any act or illegal omission or by the use of encryption or any other information hiding tool, the existence of a design] to commit such offence, or makes any representation which he knows to be false respecting such design, if offence be committed.—shall, if the offence be committed, be punished with imprisonment of any description provided for the offence, for a term which may extend to one-half of the longest term of such imprisonment, or with such fine as is provided for that offence, or with both; 2 if offence be punishable with death, etc.—or, if the offence be punishable with death or [imprisonment for life], with imprisonment of either description for a term which may extend to ten years; if offence be not committed.—or, if the offence be not committed, shall be punished with imprisonment of any description provided for the offence for a term which may extend to one-fourth part of the longest term of such imprisonment or with such fine as is provided for the offence, or with both.

Illustration

A, an officer of police, being legally bound to give information of all designs to commit robbery which may come to his knowledge, and knowing that B designs to commit robbery, omits to give such information, with intent to facilitate the commission of that offence. Here A has by an illegal omission concealed the existence of B's design, and is liable to punishment according to the provision of this section

Section 120 IPC: Concealing design to commit offence punishable with imprisonment

Corresponding provision: Section 60 BNS.

Whoever, intending to facilitate or knowing it to be likely that he will thereby facilitate the commission of an offence punishable with imprisonment, voluntarily conceals, by any act or illegal omission, the existence of a design to commit such offence, or makes any representation which he knows to be false respecting such design, if offence be committed; if offence be not committed.—shall, if the offence be committed, be punished with imprisonment of the description provided for the offence, for a term which may extend to one-fourth, and, if the offence be not committed, to one-eighth, of the longest term of such imprisonment, or with such fine as is provided for the offence, or with both

Key Points

- Abetment has three statutory modes: instigation, conspiracy accompanied by an act or illegal omission, and intentional aid.
- Wilful misrepresentation or concealment of a material fact may amount to instigation.
- The principal act need not always be completed for abetment to exist.
- The person abetted need not possess legal capacity or the same guilty intention as the abettor.
- Liability for a different act depends on probable consequence and the statutory connection to the abetment.
- Knowledge that the abetted act was likely to cause a different effect is central to liability for that effect.
- BNS Section 48 adds reciprocal cross-border abetment liability.
- BNS Section 57 increases punishment for abetting an offence by the public or more than ten persons.
- Concealment provisions require intention to facilitate or knowledge that facilitation is likely.

Legal References - Important Statutory Provisions

- Indian Penal Code, 1860 - Sections 107-108A: Abetment, abettor and cross-border abetment.
- Indian Penal Code, 1860 - Sections 109-117: Punishment and consequential liability.
- Indian Penal Code, 1860 - Sections 118-120: Concealment of criminal designs.
- Bharatiya Nyaya Sanhita, 2023 - Sections 45-48: Abetment and cross-border rules.
- Bharatiya Nyaya Sanhita, 2023 - Sections 49-57: Punishment and consequential liability.
- Bharatiya Nyaya Sanhita, 2023 - Sections 58-60: Concealment of criminal designs.
- Bharatiya Nyaya Sanhita, 2023 - Section 61: Criminal conspiracy.
- Bharatiya Nyaya Sanhita, 2023 - Section 62: General attempt provision.

Exam Focus

Identify the precise mode of abetment first. For instigation, prove active encouragement or qualifying wilful deception; for conspiracy-based abetment, prove agreement plus the required act or illegal omission; for intentional aid, prove facilitation and intention. Then ask whether the principal act occurred, whether a different act or effect was a probable or known consequence, whether the abettor was present, and whether an express punishment provision applies. Do not confuse abetment by conspiracy with the separate offence of criminal conspiracy.

Revision Notes

- IPC 107 maps to BNS 45; IPC 108 to BNS 46; IPC 108A to BNS 47.
- BNS 48 is a new reciprocal cross-border abetment provision.
- IPC 109-120 map to BNS 49-60.
- Instigation, qualifying conspiracy and intentional aid are distinct modes.
- Abetment can be complete even when the principal offence is not completed.
- Different-act liability requires probable consequence; different-effect liability requires the prescribed knowledge.
- BNS 57 raises the group-abetment maximum imprisonment to seven years.
- Sections 58-60 BNS address concealment of criminal designs.

Official Reading and Disclaimer

[Bharatiya Nyaya Sanhita, 2023 - official Ministry of Home Affairs text](#)

[Indian Penal Code, 1860 - India Code text](#)

Always check amendments and binding judicial interpretation. This study material does not provide legal advice.